

Court No. - 39

Case :- WRIT - C No. - 37044 of 2014

Petitioner :- Mahaveer

Respondent :- Pashchimanchal Vidhyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Shri Pranjal Mehrotra appearing for respondent nos. 1 and 2 prays for and is allowed a week's time to seek instructions in the matter.

Put up as fresh on 30th July, 2014.

Order Date :- 21.7.2014

VKS

Court No. - 39

Case :- WRIT - C No. - 37044 of 2014

Petitioner :- Mahaveer

Respondent :- Pashchimanchal Vidhyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

On the request made on behalf of Sri Pranjal Mehrotra, put up as fresh on 6.8.2014. Till then no coercive process shall be undertaken against the petitioner.

Order Date :- 30.7.2014

Ashok Kr.

Court No. - 39

Case :- WRIT - C No. - 37044 of 2014

Petitioner :- Mahaveer

Respondent :- Pashchimanchal Vidhyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Learned counsel for the petitioner prays for and is allowed one week's time to file supplementary affidavit.

Put up as fresh on 22nd August, 2014.

Interim order, if any passed earlier, to continue till 22nd August, 2014.

Order Date :- 7.8.2014

Anil

Court No. - 39

Case :- WRIT - C No. - 37044 of 2014

Petitioner :- Mahaveer

Respondent :- Pashchimanchal Vidhyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Learned counsel for the petitioner prays for and is allowed ten days' further time to file supplementary affidavit.

Put up as fresh on 5th September, 2014.

Interim order, if any, to continue till the next date of listing.

Order Date :- 22.8.2014

Anil

Court No. - 39

Case :- WRIT - C No. - 37044 of 2014

Petitioner :- Mahaveer

Respondent :- Pashchimanchal Vidhyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard Sri R.P.S. Chauhan, learned counsel for the petitioner, learned Standing Counsel for the respondents-State and Sri Pranjal Mehrotra, appearing for the respondent nos.1 and 2.

On 21st July, 2014, Sri Pranjal Mehrotra, learned counsel for the respondent nos.1 and 2 was granted time to seek instructions in the matter. He had produced before us the documents to show that the provisional assessment notice dated 13th of December, 2012 was sent to the petitioner by registered speed post and the postal receipt was produced. Learned counsel for the petitioner had sought adjournment to verify the facts in this regard.

A supplementary affidavit has been filed today on behalf of the petitioner annexing the provisional assessment notice dated 13.12.2012 as well as the postal receipt showing its dispatch by the registered speed post. Sri R.P. S. Chauhan, learned counsel appearing for the petitioner has invited our attention to the contents of the notice dated 13.12.2012 as well as the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the provisional assessment notice, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in *Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)* from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed

in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment does not give the basis on which petitioner was assessed to pay Rs.2,47,898/-. The assessing authority has not recorded its satisfaction that the petitioner has committed theft of electricity. The notice also does not specify the date for hearing, which was required.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005 to give reply and object to the provisional assessment.

Consequently, the writ petition is allowed. The impugned order dated 25.3.2014 rejecting the petitioner's representation as well as recovery citation dated 11.11.2013 are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar** (supra).

Order Date :- 5.9.2014

Anil